



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ

Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan



1st Endorsement
December 6, 2022

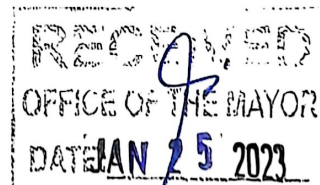
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OFFICE OF THE SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON 4711
RELEASED
DATE: 12/06/22 TIME: 1:25 PM
BY: S. HUERTAS REF. NO. 426

Respectfully transmitted to the Honorable Sangguniang Panlalawigan of Sorsogon through Hon. Vice Governor **KRUNIMAR ANTONIO D. ESCUDERO II**, MDMG, the herein attached Municipal Ordinance No. 2022-14 entitled: **"AN ORDINANCE AMENDING CERTAIN SECTIONS IN PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2016-08 OTHERWISE KNOWN AS THE "PRIETO DIAZ STD/AIDS COUNCIL ORDINANCE""** for its information, review and appropriate action.


BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

- Hon. Romeo D. Domasian
Municipal Mayor
- Dr. Jenifer Bernaldez
MHO
- The Liga ng mga Barangay
through its President Hon. Antonio Emano, Jr.
- The Sangguniang Kabataan Municipal Federation
through its President, Hon. Ronniel Diolata



Received: RHY



1-25-2023
3:30 P.M.



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON NOVEMBER 28, 2022 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Ronniel D. Diolata	SKMF Pres. /S. B. Member

ABSENT:

Hon. Florence D. Detecio, RN	S. B. Member – on leave
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ORDINANCE NO. 2022-14

Introduced by Hon. Florence Detecio, RN

AN ORDINANCE AMENDING CERTAIN SECTIONS IN PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2016-08 OTHERWISE KNOWN AS THE "PRIETO DIAZ STD/AIDS COUNCIL ORDINANCE"

Be it ordained by the Sangguniang Bayan of the municipality of Prieto Diaz, in session assembled;

SECTION 1. TITLE. The short title of this ordinance shall now be known as the "Prieto Diaz STD/HIV/AIDS Prevention and Control Ordinance".

SECTION 2. DECLARATION OF POLICY.

Section 2 of this ordinance shall read now as: "It shall be the policy of Prieto Diaz to extend to every person suspected or known to be infected with HIV/AIDS full protection of his/her human rights. It shall also promote public awareness about the causes, modes of transmission, means of prevention and control of HIV/AIDS through a comprehensive educational and information campaign."

SECTION 3. DEFINITION OF TERMS. As used in this ordinance, the following terms are defined as follows:

- a. Acquired Immune Deficiency Syndrome (AIDS) – a condition characterized by a combination of signs and symptoms, caused by HIV contracted from other person and which attacks and weakens the body's immune system, making the affected individuals susceptible to other life-threatening infections.
- b. Active Surveillance – refer to sentinel serologic surveillance which is the systematic and regular collection of blood samples to identify the distribution and trends of HIV infection among selected groups.
- c. Behavioral Surveillance – a systematic and regular collection of information on risk behaviors and co-factors of the transmission of HIV Infection among selected population groups.
- d. Contact Tracing - refers to the method of finding and counseling the sexual partner(s) of a person who has been diagnosed as having sexuality transmitted disease.
- e. Entertainment Establishment – are business establishments that include but not limited to bars, nightclubs, disco houses, cocktail lounges, massage clinics, videoke bars, sing-along pub houses and other similar establishments that are required to secure a permit to operate within the Municipality of Prieto Diaz.
- f. Human Immune-Deficiency Virus – refers to the virus which causes AIDS
- g. HIV/AIDS Education – the provision of information on the causes, prevention and consequences of HIV/AIDS and activities designed to assist individuals to develop the confidence and skills needed to avoid HIV transmission and to develop more positive attitudes towards people living with HIV/AIDS.
- h. Passive Surveillance – refer to HIV registry in which the health authorities receive reports from physician, clinics and laboratories of HIV/AIDS confirmed cases.
- i. HIV/AIDS Prevention and Control – the program, strategies and measures aimed at protecting non-infected persons from contracting HIV and minimizing the impact of the condition on people living with HIV/AIDS.
- j. Prophylactic – refers to any agent or device used to prevent the transmission of the disease. i.e. condom.
- k. Reproductive Health – it is a state of complete physical, mental and social well-being and not merely the absence of disease and infirmity in all matters relating to the reproductive health system and its function.
- l. Reproductive Tract Disease – another term for STD
- m. Serological Surveillance – a systematic and regular collection of blood samples to identify the distribution and trends of HIV infection among selected groups.
- n. Sexually Transmitted Diseases (STD) – any disease that is acquired or transmitted through sexual contact.
- o. Sexually Transmitted Infection – synonymous to STD
- p. Social Hygiene Clinic- a clinic located at the Provincial Health office, whose purpose is to achieve universal availability and accessibility of reproductive health services, putting emphasis on the needs of underserved and vulnerable groups including adolescents.

SECTION 4. CREATION OF STI/HIV/AIDS COUNCIL (PDSHAC)

Section 4 shall now read as: There shall be a creation of a municipal council to generally oversee the concerted local multi-sectoral and comprehensive response to STD/HIV/AIDS and to mobilize the citizenry to rally behind the challenges of this no-known cure diseases.

The Council shall be composed of the following:

- Chairman : Municipal Mayor
- Co-Chairman : Municipal Health Officer
- Members : Chairman, SB Committee on Health
- : Chairman, SB Committee on Family, Women & Social Welfare
- : President, SKMF
- : President, Liga ng mga Barangay
- : Municipal Social Welfare Development Officer
- : Municipal Human Resource Management Officer
- : Two (2) representatives from accredited NGOs/POs actively involved in the programs, activities and advocacy with STD/HIV AIDS prevention, to be appointed by the Mayor
- : Principal of three (3) High Schools in the municipality
- : DepEd District Supervisors (District I and II)
- : Representative, Municipal Police Station
- : Representative, LGBTQ+A Group
- : Representative, Parish Youth Ministry
- : Representative, Women's Group
- : 2 Representatives, Religious group

In case of the absence of any of the member of the council, he/she shall designate a permanent representative who will represent him/her during meetings or activities of the Council. From time to time, the council may expand its membership as the need arises, upon the approval of the council.

Section 4.1 POWERS AND FUNCTIONS OF THE COUNCIL

Section 4.1 shall now read as: For the attainment of the aforesated purpose, the Prieto Diaz STD/AIDS Council shall be charged and vested with the following powers and functions:

- a. Formulate policies and strategies for the prevention and control of STD/HIV/AIDS within the Municipality of Prieto Diaz
- b. Prepare short, medium, and long-term plans for the prevention and control of STD/HIV/AIDS
- c. Monitor and evaluate the implementation of its programs and plans, campaigns and strategies.
- d. Organize and encourage owners/operators/managers of registered entertainment establishments, sauna and massage parlors to actively participate in the prevention and control of STD/HIV/AIDS.
- e. Identify and recommended priorities and gaps in local STD/HIV/AIDS related cases.
- f. Conduct periodic public information, education and communication activities in the promotion of prophylactic, reproductive health, prevention and control of STD/HIV/AIDS in different communities and barangays.
- g. Conduct regular seminars in all educational institution from primary to tertiary level and to distribute, disseminate, circulate, publish or broadcast modules, pamphlets, booklets, brochures or other forms of information be it written verbal, audio, or video.
- h. Conduct regular seminars/forums/dialogues in all government institutions and agencies and its subdivisions whether national or local including government

owned or controlled corporations found within the territorial jurisdiction of the municipality of Prieto Diaz as well as private establishments and to contribute, disseminate, circulate, publish or broadcast modules, pamphlets, booklets, brochures or other forms of information be it written, verbal, audio, or video.

- i. Conduct yearly STD/HIV/AIDS Serological and Behavioral Surveillance, in coordination with the Reproductive Health Clinic (RHC-CHO) and the Department of Health (DOH) among the people with high-risk sexual behavior or those who by the nature of their work is prone to contacting STD/HIV/AIDS virus
- j. Initiate skills training, advocacy program and development strategies to benefit the people with the high risk of contact STD/HIV/AIDS virus and;
- k. Monitor, inspect, examine regularly the facilities, practices and procedures of hospitals, medical/dental clinics, medical/dental laboratories, medical/dental testing centers and blood banks located within the territorial jurisdiction of the Municipality of Prieto Diaz whether they are public or privately owned, for profit or charitable purpose and evaluate whether or not they have complied with the existing minimum standards in the prevention and containment of STD/HIV/AIDS diseases.
- l. Recommend to the Sangguniang Bayan enactment of laws and ordinance that shall assist in the control and prevention and containment of STD/HIV/AIDS
- m. Recommend the closure or imposition of sanctions or penalties of any establishment found violating the prohibited acts as mentioned under this ordinance
- n. Assist in the source/request for funding and recommend allocation of resources
- o. To act as the primary agency that shall represent the Municipality of Prieto Diaz in all conventions, conferences, forums or gathering of other agencies, organizations, leagues, chambers or grouping whether national, local or international pertaining to the issue on STD/HIV/AIDS
- p. To monitor in coordination with the Municipal Health Office STD/HIV/AIDS cases in the municipality
- q. To identify STD/HIV/AIDS cases through passive and active surveillance; and
- r. To reform all other task and functions related to the overall objective in the prevention and control of STD/HIV/AIDS in the municipality of Prieto Diaz.

Section 4.2 MEETING. The council shall meet at least quarterly or as often as may be necessary by serving notice to all members at least a day before the meeting.

Section 4.3 THE SECRETARY. The Rural Sanitary Inspector shall be designated as the Secretary of the council.

Section 4.4 FUNCTIONS OF THE SECRETARY. The Secretary shall have the following functions and duties:

- a. Prepare the agenda of the meeting of the Council and record the minutes of the same;
- b. Shall keep all the records of the Council;
- c. To submit an annual report to the Council within two months after the end of each calendar year;
- d. Coordinate with the concerned offices for the implementation of the policies, programs, and activities of the Council; and
- e. To perform such other functions as may be required by the Council

SECTION 5. MANDATORY STD/HIV/AIDS EDUCATION AND INFORMATION

Section 5 shall now read as: Mandatory comprehensive, STI, HIV and AIDS Education shall be designed, integrated and adopted in various levels geared towards the purpose of providing substantial information/ knowledge, improving attitudes and skills in the prevention and control of STI, HIV and AIDS, in both public and private sphere.

Section 5.1 SEXUAL ABSTINENCE AND MUTUAL FIDELITY

Sexual abstinence and mutual fidelity shall be emphasized as the most effective measure for STI, HIV/ AIDS prevention.

Section 5.2 STI, HIV AND AIDS IEC MATERIALS AND EDUCATION MODULES

Information, Education and Communication (IEC) materials shall be designed appropriate to the needs and culture of group being targeted in the campaign. Literatures on STI, HIV and AIDS shall utilize the local dialect to encourage and facilitate easy understanding of terms and concepts. Modules on STI, HIV and AIDS prevention and control shall not in any way be used as excuse to propagate birth control or sale or distribution of birth control devices. Proper consultations shall be held among individuals who are targets for application for any course content, scope and methodology.

Section 5.3 STI, HIV/AIDS INFORMATION AS A HEALTH SERVICE

STI, HIV and AIDS education and information dissemination shall form part of the delivery of health services practitioners, workers and personnel. The knowledge and capabilities of all public health workers shall be enhanced to include skills for proper information dissemination and education on STI, HIV and AIDS. It shall likewise be considered a civic duty of health providers in the private sector to make available to the public such information necessary to control the spread of STI, HIV and AIDS and to correct common misconceptions on STI, HIV/AIDS related ethical issues such as confidentiality, informed consent and the duty to provide treatment.

Section 5.4 STI, HIV/AIDS EDUCATION IN SCHOOLS

The Municipal Health Board in cooperation with the Department of Education shall take the lead in information dissemination and popularization on the nature of STI, HIV and AIDS and its prevention, utilizing standardized information provided by the Department of Health in all schools, and to include non-formal system of education.

All teachers of said STI, HIV and AIDS courses/classes shall be required to undergo seminar or training on STI, HIV and AIDS prevention and control to be supervised by the Department of Education, CHED, TESDA or any accredited institution/organization, in coordination with the Department of Health, before they are allowed to teach on the subject.

Section 5.5 STI, HIV/AIDS EDUCATION IN THE WORKPLACE

All employees of the municipality of Prieto Diaz, regardless of their status, shall be required to undergo basic orientation on STI, HIV and AIDS to be conducted by the Municipal Health Office and the Municipal Human Resources Management Office of the municipality of Prieto Diaz.

Managers, supervisors and employees in the private workplaces shall be provided with standardized basic information and instructor on STI, HIV and AIDS which shall include topics on confidentiality in the workplace an attitude towards infected employees and workers. The Municipal Health Office (MHO) and Public Employment Service Office

(PESO) with the coordination to the Department of Labor and Employment (DOLE) and its attached agencies shall undertake measures in the implementation and monitoring of the same.

Section 5.6 STI, HIV AND AIDS EDUCATION FOR FILIPINOS GOING ABROAD

The Municipal Government of Prieto Diaz thru Municipal Health Office and Public Employment Service Office (PESO) shall coordinate with the Department of Labor and Employment in the implementation of STI,HIV/AIDS education among Filipinos going abroad. Pursuant to section 7 of R.A 8504, STI, HIV and AIDS education seminar shall be part of the Pre-Employment and Pre-Departure Seminar among Overseas Filipino Workers.

Section 5.7 STI, HIV AND AIDS EDUCATION IN THE COMMUNITIES

In partnership with the Municipal Health Office, all barangays shall conduct educational and information campaign on STI, HIV and AIDS prevention. The Barangay Officials and Barangay Health Workers shall coordinate such campaign among concerned government agencies, non-government organizations and church-based groups.

Section 5.8 INFORMATION CAMPAIGN FOR TOURISTS AND TRANSIENTS

Materials on the causes, mode of transmission, prevention and consequences of STI, HIV infection shall be adequate provided at all ports of entry and exit, hotels and nights spots in the municipality.

Section 5.9 FOR BUSINESS ESTABLISHMENT OWNERS/MANAGERS

It shall be compulsory for individual/ establishment owner or manager or its representative who engages in business in Prieto Diaz to undergo seminar on STI, HIV and AIDS prevention conducted regularly by the Municipal Health Office with the coordination of Prieto Diaz AIDS Council.

No Health Certificate shall be issued to the business applicant/establishment, unless he/she has attended the said seminar. A certificate of attendance to STI, HIV/AIDS Seminar issued by the Municipal Health Office shall form part of the requirements before the issuance or renewal of Health Certificate and Permit to Operate. A Seminar fee of P100.00 to be collected each establishment/participant.

SECTION 6. SOCIAL HYGIENE CLINIC

Should there be STD/HIV/AIDS cases in the municipality, the Municipal Health Officer shall coordinate with and seek the assistance of the Social Hygiene Clinic which shall perform its duties as prescribed by law or ordinance.

SECTION 7. DECLARATION OF AIDS AWARENESS MONTH

Section 7 shall now read as:

The month of May is hereby declared as AIDS Awareness month to coincide with the commemoration day for persons living with HIV/AIDS and International Day of Action on Women's Health. Likewise, AIDS awareness should culminate on the month of December, being the World AIDS Day.

Section 7.1 ADVOCACY PROGRAMS FOR THE AIDS AWARENESS MONTH

There shall be an advocacy program for the whole month of May for the dissemination of information for the prevention and control of STI, HIV/AIDS.

SECTION 8. SAFE PRACTICES AND PROCEDURES

Section 8 shall now read as:

Section 8.1 REGULATION OF CHILDREN

Children should not be allowed to go, roam or loiter within and near the vicinity of entertainment establishments. Parents, guardians, or any persons who knowingly allow or bring children to enter any entertainment establishment during operations shall be penalized. Children found entering any entertainment establishments shall immediately be rescued, and be provided with appropriate interventions as the circumstances warrant.

Section 8.2 AVAILABILITY OF PROPHYLACTIC

To prevent STD/HIV/AIDS, all entertainment establishments are required to make prophylactics or condoms available within their establishments.

Section 8.3 REGULAR STD SCREENING FOR ENTERTAINERS AND OTHERS WITH SIMILAR OCCUPATION

All entertainers, masseurs and other with similar occupation shall undergo compulsory weekly medical check-up (gramstaining) to be conducted on regular basis at the Reproductive Health Clinic of the Municipal Health Office.

Section 8.4 COMPILATION OF ROSTER OF ENTERTAINERS/ EMPLOYEES IN ENTERTAINMENT ESTABLISHMENT

The Municipal Health Office shall maintain a roster of entertainers/ employees indicating their ages and place of employment. In relation thereto, all owners/operators/managers of entertainment establishments shall submit to the Municipal Health Office quarterly an updated list of their employees.

Section 8.5 SPECIAL CARE AND SUPPORT SERVICES FOR THE PERSON WITH HIV/AIDS

The Municipal Government of Prieto Diaz shall provide special care and support services for children of persons with HIV/AIDS.

SECTION 9. MONITORING

Section 9 shall now read as:

The Council shall establish a comprehensive STD/HIV/AIDS monitoring program in coordination with the Municipal Health Office's similar monitoring program to determine and monitor the magnitude and progression of STD/HIV/AIDS infection in the municipality of Prieto Diaz and for the purpose of evaluating the adequacy and efficiency of the countermeasures being employed by the Council, Municipal Health Office and NGO's.

Further, the Council in coordination with the Municipal Health Office, shall monitor STD/HIV/AIDS cases through passive and active surveillance. Active surveillance includes conduct of a yearly STD/HIV/AIDS serological and behavioral surveillance among the people with high-risk sexual behavior or those who by the nature of their work is prone to contacting STD/HIV/AIDS.

Section 9.1 REPORTING

All hospitals, clinics, laboratories, and testing centers for STD/HIV/AIDS is required to immediately report to the Municipal Health Office any identified STD/HIV/AIDS cases.

Section 9.2 CONTACT TRACING

STD/HIV/AIDS contact tracing and all other related health intelligence activities may be pursued by the Council in coordination with the Municipal Health Office; provided such shall not contravene to the general purpose of R.A. 8504. Provided further that any information gathered shall remain confidential and classified and only can be used for statistical and monitoring purposes and not as basis or qualification for any employment, school attendance, freedom to abode, or travel.

SECTION 10. MEDICAL CONFIDENTIALITY

Section 10 shall now read as:

All health professionals, medical instructors, workers, employers, hospitals, laboratories, recruitment agencies, insurance companies, data encoders, and other custodians of any medical record, file, data, or test results are directed to strictly observe confidentiality in the handling of all medical information, particularly the identity and status of persons with STD/HIV/AIDS.

Section 10.1 EXCEPTIONS: Medical confidentiality shall not be considered breached in the following:

- a. When informing other health workers directly involved or about to be involved in the treatment or care of a person with HIV/AIDS: Provided that, such treatment or care carry the risk of HIV transmission; Provided, further that such workers shall be obliged to maintain the shared medical confidentiality; and
- b. When responding to a subpoena duces tecum and subpoena ad testificandum issued by the Court with jurisdiction over a legal proceedings where the main issue in the HIV status of an individual; Provided, that the confidential medical record shall be properly sealed by its lawful custodian after being double checked for accuracy by the head of the office or department, hand delivered, and personally opened by the judge; Provided, further that the judicial proceedings be held in executive session.

Section 10.2 RELEASE OF HIV/AIDS TEST RESULTS

All results of HIV/AIDS testing shall be confidential and shall be released only to the following persons:

- a. The person who submitted himself/herself to such test.
- b. Either parent of a minor child who has been tested;
- c. A legal guardian in the case of insane persons or orphans;
- d. A person authorized to receive such result in conjunction with the surveillance program of the Municipal Health Office as provided in accordance with the provisions of in Section 27 of R.A. 8504.
- e. A justice of a Court of Appeals or the Supreme Court, as provided in accordance with the provisions of Section 16 R.A. 8504.

Section 10.3 DISCLOSURE TO SEXUAL PARTNER

Any person with HIV is obliged to disclose his/her HIV status and health condition to his/her spouse or sexual partner at the earliest opportune time.

Section 11. DISCRIMINATION & RESTRICTION

Section 11 shall now read as:

Section 11.1 DISCRIMINATION IN THE WORKPLACE

Discrimination in any form from pre-employment to post employment including hiring, promotion or assignment, based on the actual perceived or suspected HIV status of an individual is prohibited. Termination from work on the sole basis of actual perceived or suspected HIV status is deemed unlawful.

Section 11.2 DISCRIMINATION IN SCHOOL

No educational institutional shall refuse admission or expel, discipline, segregate, deny participation, benefits for services to a student or prospective student on the basis of his/her actual, perceived or suspected HIV status.

Section 11.3 RESTRICTION ON TRAVEL AND HABITATION

The freedom of abode, lodging and travel of a person with HIV shall not be abridged. No person shall be quarantined, placed in isolation, or refused lawful entry into or deported from Philippine territory on account of his/her actual, perceived or suspected HIV status.

SECTION 12. APPROPRIATIONS.

Section 12 shall now read as:

There shall be fund appropriated in the amount of fifty thousand pesos (P 50,000.00) under the Office of the Mayor (STD/HIV Ordinance) for the operation of the Council and for the implementation of this ordinance.

SECTION 13. PENAL PROVISION

Section 13 shall now read as:

Operators, managers, entertainers, employees of the establishments mentioned in the ordinance, who violate the provisions in this ordinance shall be meted with the following penalties:

- a. 1st Offense – reprimand
- b. 2nd Offense – P 1500.00
- c. 3rd Offense – P 2,500.00 or revocation of business permit or filing of case in the proper court

SECTION 14. SEPARABILITY CLAUSE

The provisions of this ordinance are hereby declared to be separable and in the event one or more of such provisions are held unconstitutional, the validity of the other provisions shall not be affected thereby.

SECTION 15. REPEALING CLAUSE

Any existing ordinance or any of its provision or provisions, which are inconsistent with this ordinance, shall be deemed repealed, amended or modified accordingly.

SECTION 16. EFFECTIVITY

This ordinance shall take immediately upon the completion of the required publication as provided for by Local Government Code of 1991.

ENACTED: November 28, 2022

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Dr. Jenifer Bernaldez, MHO; the Liga ng mga Barangay through its President, Hon. Antonio Emano, Jr.; the Sangguniang Kabataan MUunicipal Federation through its President, Hon. Ronniel Diolata and all concerned for their information and appropriate action.

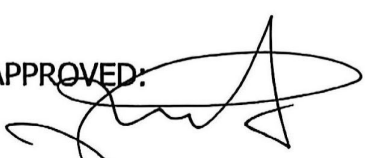
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN
Municipal Mayor

Date approved: 12/06/2022



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

January 05, 2023

TRANSMITTAL NO. **11-2023**

JAN 16 2023

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**

Thru: **Ms. BERNADETTE E. YAO**

Secretary to the Sangguniang Bayan

LGU – Prieto Diaz, Sorsogon

Respectfully transmitting a copy of resolution approved by the 11th Provincial Board on **December 19, 2022 (25th Regular Session)** for your information and reference.

RESOLUTION NO. 560-2022

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2002-14, ENTITLED: "AN ORDINANCE AMENDING CERTAIN SECTIONS IN PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2016-08 OTHERWISE KNOWN AS THE "PRIETO DIAZ STD/AIDS COUNCIL ORDINANCE."

Prepared by:

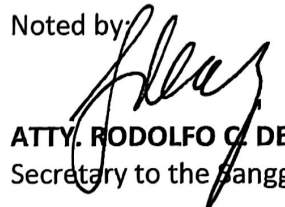

CLARISA S. LASTRILLA

Administrative Aide II (Bookbinder)

SBIC - 01162023 - 015

OFFICE OF THE SANGGUNIANG BAYAN	
PRIETO DIAZ, SORSOGON 4711	
RECEIVED	
DATE: <u>1/16/23</u>	TIME: <u>8:00 AM</u>
BY: <u>[Signature]</u>	REF. NO. <u>015</u>

Noted by:


ATTY. RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 25TH REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON DECEMBER 19, 2022 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

-oOo-

RESOLUTION NO. 560-2022

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2022-14, ENTITLED: "AN ORDINANCE AMENDING CERTAIN SECTIONS IN PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2016-08 OTHERWISE KNOWN AS THE "PRIETO DIAZ STD/AIDS COUNCIL ORDINANCE."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Municipal Ordinance No. 2022-14 for review and appropriate action;

WHEREAS, the following are the recommendations of the Board for consideration of the sangguniang bayan;

1. Sections 1, 2, 4 to 4.1, 5 and 7 to Section 13 are the amended provisions. This ordinance aims to provide human rights protection to anyone suspected or known to be infected with HIV/AIDS. Through a comprehensive educational and information campaign, it also raises public awareness about the causes, modes of transmission and methods of prevention and control of HIV/AIDS;

2. A council should be created to oversee the coordinated local multi-sectoral and comprehensive response to STD/HIV/AIDS and to mobilize citizens to rally behind the challenges of these incurable diseases;
3. An amount of fifty thousand pesos P50,000.00 should be appropriated from the Office of the Mayor (STD/HIV Ordinance) for the operation of the council and the implementation of this ordinance;

WHEREAS, the ordinance is *intra vires* as mandated under Section 17 (b) (2) (iii) of R.A. No. 7160, otherwise known as the Local Government Code of 1991 which provides, that:

(iii) Subject to the provisions of Title Five, Book I of this Code, health services which include the implementation of programs and projects on primary health care, maternal and child care, and communicable and non-communicable disease control services; access to secondary and tertiary health services; purchase of medicines, medical supplies, and equipment needed to carry out the services herein enumerated;

NOW, THEREFORE, on motion of Hon. Roland R. Añonuevo, duly seconded by Hon. Ramon B. Escudero, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2022-14, ENTITLED: "AN ORDINANCE AMENDING CERTAIN SECTIONS IN PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2016-08 OTHERWISE KNOWN AS THE "PRIETO DIAZ STD/AIDS COUNCIL ORDINANCE."**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information, guidance and appropriate action.

APPROVED.

-oOo-

I HEREBY CERTIFY to the correctness of the foregoing.


RODOLFO C. DEALCA JR.

Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRISMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer